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Provision of April 27, 2023

Register of provisions

No. 171 of April 27, 2023

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting held today, attended by
Prof. Pasquale Stanzione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia and Attorney Guido Scorza, members, and
Counsel Fabio Mattei, Secretary General;

HAVING REGARD to Regulation (EU) 2016/679 of the European Parliament
and of the Council, of April 27, 2016 (hereinafter, "Regulation");

HAVING REGARD to the Code regarding the protection of personal data, containing provisions for the
adaptation of the national legal system to Regulation (EU) 2016/679 (Legislative Decree No. 196 of
June 30, 2003, as amended by Legislative Decree No. 101 of August 10, 2018, hereinafter "Code");

HAVING REGARD to the complaint filed pursuant to Article 77 of the Regulation by Mr. XX, XX, and
XX against Geico S.p.A.;

HAVING EXAMINED the documentation on file;

HAVING REGARD to the observations made by the Secretary General pursuant to Article 15 of the
Guarantor's Regulation No. 1/2000;

REPORTING Prof. Pasquale Stanzione;

PREMISED

1. The complaint against the company and the investigative activity.

By complaint dated August 20, 2020, Mr. XXX, XX, and XX alleged presumed violations of the
Regulation by Geico S.p.A. (hereinafter, the Company), concerning the processing of personal data
carried out through the email accounts (XX, XX, and XX) assigned to the complainants in the context
of the employment relationship with the Company.

In particular, the complaint alleged that the Company kept the aforementioned email addresses active
after the termination of the employment relationship and accessed their content, at least until March
17, 2021 (as highlighted by the automatic security notifications from Google received by the interested
parties: see the complainants' reply memorandum of June 1, 2021).

Part of the data processed in this manner was used in a lawsuit initiated by the Company before the
competent ordinary judicial authority.

Such processing operations on the corporate email accounts would have been carried out by the
Company, in the absence of information to the interested parties, pursuant to Article 13 of the
Regulation.

In response to the request for information from the Office, the Company, in a note dated March 22,
2021, stated that:

- a. "the contested facts must be placed within the context of a much broader and more complex affair,"
in relation to which the Company has approached the competent judicial authority (Milan Court -
Specialized Section for Business Matters) against the complainants (note of March 22, 2021, p. 2);
- b. "when GEICO became aware of the serious and irreparable danger that risked compromising [...] the
further continuation of its business activity, it found itself obliged to adopt extraordinary and
exceptional measures compared to its ordinary procedures for processing personal data" (cited note,
p. 5);
- c. "The accounts [assigned to the complainants] were deactivated at the end of March 2019 (with
reference to complainants XX and XX) the day after the termination of the relationship. Regarding Mr.
XX's account, it was deactivated in May 2019, the day after the termination of the relationship. Given
the serious unlawful conduct carried out by the complainants [...] the usual 'takeout' archiving activity

was not performed due to the need to keep the evidence contained in the respective mailboxes completely intact” (cited note, p. 5);

d. “access [to the accounts] was performed [by the party expert] exclusively for the protection of the rights [of the Company] in judicial proceedings” (cited note, p. 6);

e. “no facts or data relating to the private lives of others were processed (nor alleged in court) (dealing with the emails in question exclusively professional and work-related profiles)” (cited note, p. 8).

In a subsequent note dated February 15, 2022, sent in response to a request for further information made by the Office, the Company stated that:

a. “the corporate operating procedures [...] were formalized through corporate communications from the sector managers. In particular, IS6417 was formalized to all employees [...] on July 27, 2015” (note of February 15, 2022, p. 1-2);

b. “all corporate procedures, including IS6188 (related to Rules for the Use of Corporate IT Tools and Services) and IS6417 (related to OutBoarding Google Apps), were promptly and effectively disseminated [...] through communication sent to the domain XX” (cited note, p. 2);

c. still regarding the specific ways in which the corporate policies related to the correct use of corporate email and the controls carried out by the Company were made known to the complainants, it was represented that, from the email of March 2, 2015 sent by the Human Resources function also to one of the complainants, it emerges that “according to established corporate practice [...], evidently well known to the complainants, all new hires undergo specific initial training and ‘induction’ sessions, even regarding [corporate] policy” (cited note, p. 6);

d. “as demonstrated by the Assignment and Authorization Forms for the Transport of Personal Computers [...] the complainants [...] accepted and signed.

the commitment to adhere to the Operational Instruction

“Rules for the Use of Company IT Tools and Services” IS6188 [...]” (note cited, p. 2-3);

e. “In the initial phase, the accounts were suspended (deactivated) [...] the day after the termination of the relationship” (note cited, p. 3);

f. “Regarding the automatic forwarding mechanism [...] reference is made to the procedure [...] IS6417 (OutBoarding Google Apps)” (note cited, p. 3);

g. “At the end of March 2019, the claimants communicated [...] to the then president [...] their intention to resign. They also communicated their desire to set up a company for small-scale work. However, in the following days, contradictory behaviors were observed [...], which generated [...] numerous suspicions” (note cited, p. 6);

h. “The treatment carried out on the claimants' email accounts was therefore solely and exclusively motivated and aimed at the appropriate investigations and the strictly consequent and related defensive needs arising from the claimants' conduct” (note cited, p. 6);

i. “Annex 6 to the Report [of the party expert] contained all the emails that passed through the accounts in question. [...] from the emails in question, it emerged [...] a careless use (when not outright contrary to company policies) of the work account [of the claimants] for registration to mailing lists absolutely unrelated to work activities (e.g. related to sites such as Volagratis, Marriot hotel, etc.)” (note cited, p. 7);

j. “Access to the mailboxes and the use of the emails found therein and produced in court before the Court of Milan was necessitated, circumscribed, and limited to acquisition in that venue [...]” (note cited, p. 7).

2. The initiation of the procedure for the adoption of corrective measures and the Company's defenses. On June 28, 2022, the Office notified the Company of the alleged violations of the Regulation found, with reference to Articles 5, paragraph 1, letters a), b), c), e), f) and 13 of the Regulation, pursuant to Article 166, paragraph 5, of the Code.

In defensive memoranda sent on July 29, 2022, the Company stated that:

a. “the conduct and data processing of the three Claimants [...] must necessarily be considered in the factual context and in the chronological sequence in which all relevant facts occurred within the specific relationship between [the Company] and the [claimants]” (note 29/7/2022, p. 1);

b. the claimants “for over ten years, held senior and managerial positions within [the Company], with significant responsibilities regarding strategic sectors of the company entrusted to them as interfaces

with clients and suppliers” (note cited, p. 1);

c. “The senior and managerial role and the over-decade-long duration of the claimants’ employment relationship with [the Company] made their resignations [given on 28/3/2019] – voluntary and simultaneous – immediately suspicious” (note cited, p. 2);

d. the day after the resignations of two claimants (29/3/2019), the Company sent both a communication announcing the immediate termination of the employment relationship (from the date of the communication itself), reminding them of the content of Article 2598 of the Civil Code regarding unfair competition; on the same date, “Initial signs of the misappropriation of secrets and know-how, patent infringement, and unfair competition by the Claimants to the detriment of [the Company]” would also emerge (note cited, p. 2 and Annex 18);

e. on 18/4/2019, “evidence of the misappropriation of secrets and know-how, patent infringement, and unfair competition perpetrated by the Claimants to the detriment of [the Company]” emerged, consisting of an email sent by one of the claimants to a representative of a competing company, with the other two claimants copied (one of whom was still an employee of the Company at that time) (note cited, p. 2);

f. between 30/7 and 11/9 2019, “Technical-forensic investigation activities were carried out at [the Company by the party expert]”, who presented a preliminary report on 18/10/2019 (note cited, p. 3 and Annex 27);

g. “the alleged treatments carried out [by the Company] were immediately motivated exclusively by defensive purposes and the preconstitution of evidence within judicial proceedings – civil and criminal – that [the Company] has effectively [...] initiated” (note cited, p. 6);

h. the Company “had an interest – as its own competitiveness in the market and business continuity were at risk – in knowing any other parties involved and what and how much information and data had been misappropriated” (note cited, p. 6);

i. “Regarding the duration of the alleged treatment [...] for the entire duration of the precautionary proceedings (about 18 months, between the first and second degree of precautionary measures) and for the immediately following period, [the Company] necessarily had to remain in possession of all evidence of the opposing violations” (note cited, p. 7);

j. “the chronology proposed on p. 5 of the Authority’s provision of 28.06.2022 regarding the date of assignment of the task [to the party expert] is incorrect” (note cited, p. 7);

k. “an internal regulation called ‘Operational Instruction – Rules for the Use of Company IT Tools and Services IS 6188’ has been in force for some time [...], which came into effect on 20.04.2015 and is well known to the Claimants as it was delivered in paper form to each employee and made available in electronic format on the Company’s intranet” (note cited, p. 8);

l. “Granted but not conceded that [the Company] has processed personal data – unlawfully transmitted, given the current policies [...], on the email accounts and corporate devices of the current Complainants (moreover, little more than the name and surname of the Complainants and some unauthorized subscriptions to travel newsletters...), such processing was done exclusively to have proof of the unlawful acts” (note cited, p. 10);

m. “When GEICO became aware of the ongoing danger, which risked severely and irreparably compromising the further continuation of its own [...] business and commercial activity and competitiveness in the market, it felt compelled to adopt rapid, extraordinary, and exceptional measures compared to its ordinary procedures for processing personal data, in a situation of imminent, concrete, and entirely unusual danger for the company” (note cited, p. 15);

n. there are currently pending proceedings against the complainant before the ordinary judicial authority, initiated by the Company for its protection;

o. the Company has, lastly, provided all the elements referred to in Article 83, paragraph 2 of the Regulation. During the hearing held on November 22, 2022, the Company finally declared that:

a. “following the receipt of the complaint filed with the Guarantor by the Complainants, the Company, on June 20, 2020, adopted a new policy specifically regarding the use of corporate tools, including email, which took into account all the observations contained in the Guarantor’s note”;

b. "the Company has completed the adjustment activity to the regulations on personal data protection through the introduction of privacy representatives for each function as well as the establishment of a Privacy Committee and a Strategic Privacy Committee [...] as well as the adoption and/or updating of policies related to the privacy of both employees and customers";

c. "Regarding the methods of corporate communication, and in particular the 'operational instruction' in force at the time of the facts subject to the complaint, it is noted that in 2015 a corporate intranet system was not yet active and communication occurred through an invitation to employees to join a corporate community";

d. "the complaint arises from an attempt by former employees to invalidate the evidence collected by the Company and used in pending proceedings both civil and criminal. The Company acted solely to protect its rights in court. It is therefore requested that the Guarantor take into account the general principle of legitimate defense, in the context of balancing the rights and interests underlying the matter that gave rise to the complaint."

3. The outcome of the investigation and the procedure for the adoption of corrective and sanctioning measures.

3.1 Outcome of the investigation.

As a result of the examination of the statements made to the Authority during the procedure as well as the documentation acquired, it appears that the Company, as the data controller, has carried out some processing operations related to the complainants that are not compliant with the regulations on personal data protection.

In this regard, it is highlighted that, unless the act constitutes a more serious crime, anyone who, in a proceeding before the Guarantor, falsely declares or certifies news or circumstances or produces false acts or documents is liable under Article 168 of the Code "Falsehood in declarations to the Guarantor and interruption of the execution of the tasks or the exercise of the powers of the Guarantor."

On the merits, it emerged that the Company kept active the accounts assigned to the complainants during the employment relationship for a significant period of time (at least until March 17, 2021), following deactivation and simultaneous redirection of the same to a different corporate address, starting from the day after the termination of the employment relationship (i.e., respectively, on March 29, 2019, for two complainants and May 20, 2019, for the third).

The aforementioned accounts were then closed, although on an unspecified date, as communicated by the Company to the Authority on February 15, 2022.

This resulted in the processing of personal data related to the complainants and contained in the electronic correspondence present in the corporate account, in light of the definitions of "personal data" and "processing," contained in Article 4, nos. 1 and 2, of the Regulation, which also include data related to work activity.

Moreover, the Company itself stated that it had found and reviewed communications of a non-work-related nature, related to mailing lists to which the complainants would have been subscribed.

In this regard, it is recalled that, in accordance with the constant orientation of the European Court of Human Rights, the protection of private life extends also to the work environment, considering that, precisely during the performance of work and/or professional activities, relationships develop where the personality of the worker is expressed (see Articles 2 and 41, paragraph 2, of the Constitution). Also taking into account that the boundary line between the work/professional sphere and the strictly private sphere cannot always be clearly drawn, the Court considers applicable Article 8 of the European Convention on Human Rights, which protects private life without distinguishing between private and professional spheres (see *Niemietz v. Germany*, 16.12.1992 (application no. 13710/88), specifically para. 29; *Copland v. UK*, 03.04.2007 (application no. 62617/00), specifically para. 41; *Bărbulescu v. Romania* [GC], 5.9.2017).

(ric. n. 61496/08), specifically paras. 70-73; *Antović and Mirković v. Montenegro*, 28.11.2017 (ric. n. 70838/13), specifically paras. 41-42).

Therefore, the processing of data carried out through information technologies within the employment

relationship must comply with the respect for the rights and fundamental freedoms as well as the dignity of the data subject, in protection of workers and third parties (see Recommendation CM/Rec (2015)5 of the Committee of Ministers to Member States on the processing of personal data in the employment context, specifically point 3).

With reference to the management of corporate accounts after the termination of the employment relationship, which constitutes the subject of the complaint and the investigation activity of the Authority in the specific case, it is also evident that the Company has carried out data processing concerning all former employees or former collaborators who were previously assigned corporate accounts under the terms described in its policy in force at the time of the events (see, further on, the provision for redirection "to another corporate user upon notification from the team leader," contained in "OutBoarding Google APPS," IS6417).

3.2 Violation of Articles 5, para. 1, letter a) and 13 of the Regulation.

Based on the investigative findings, it does not appear, first of all, that the Company informed the complainants about the possibility for it to carry out the described processing.

It has emerged, in fact, that neither the Employee Information Model (dated 25.5.2018; see Annex 5, Company note 22/3/2021) nor the "Rules for the Use of Corporate IT Tools and Services," IS6188 (dated 20/4/2015; see Annex 7, cited note) contain informative elements regarding the possibility for the Company to carry out, after the termination of the employment relationship, the types of processing that were concretely carried out in the case subject to complaint.

In particular, regarding the "Rules for the Use of Corporate IT Tools and Services," point 8.6 merely refers to what is established in another policy (which is not specifically indicated), while the information model says nothing about the proper management of email accounts.

Contrary to what is asserted in the defense memoranda, this document contains the provision of certain prohibitions, without, however, indicating any type of controls established for their compliance. The indication, present in the document, that "IT Service personnel may at any time proceed to remove any file or application that they deem to be dangerous for Security both on PCs and on network units" actually refers to a different situation (for purposes and methods) from that carried out by the Company.

Regarding, on the other hand, the document "OutBoarding Google APPS," IS6417 (dated 15/7/2015; see Annex 4, cited Company note), it provides that "email is a corporate service and all messages, once the collaboration has ceased, will be forwarded to another corporate user upon notification from the team leader" and defines the "operational procedures" for the "redirection of mail, its saving, and automatic forwarding messages."

It should be noted that from the examination of the document in question, it is not clear which messages, once the collaboration has ceased, will be forwarded to another user (whether only those received following the termination of the relationship or also those received previously), nor for which specific purposes the account continues to operate through redirection (as will be highlighted later), it has also emerged that these instructions have been included in a list of documents, related to the IT area, classified as "officialized," through communication from the Corporate Initiatives & Improvement manager sent on July 27, 2015.

The Company, on March 11, 2015, sent to all employees, including the complainants (by transmission to the domain XX), an email message informing that, starting from the previous March 2, "all information related to Officializations of quality documentation and all communications of common interest" will be included in the "Community for Quality," to which employees are invited to subscribe (see Annex 3 of Annex 11, Company note 15/2/2022).

Such communications (of March 11 and July 27, 2015) have no specific informative content and are not suitable to represent to employees, even in a summarized form, at least the subject and content of the policies contained in the Community for Quality.

This is despite the fact that some salient elements should have been adequately highlighted by the Company, at least regarding the document in question ("OutBoarding Google APPS," IS6417), given the consequences for the interested parties that such a procedure entails.

Moreover, it does not appear that the information regarding the presence of documentation and

communications within the aforementioned section has been resent to employees after July 2015, also to emphasize the importance of examining (or re-examining) the content of the documents reported in the Community.

Nor can the actual knowledge of the procedures related to the management of email after the termination of the employment relationship have been achieved with the inclusion, in the document regarding the "Assignment and Authorization for the transport of personal computers," among the notes, of the proposition: "The goods have been assigned to you for service reasons [...], for use please adhere to the Operational Instruction IS 6188" (see Annex 13, Company note 15/2/2022, regarding the forms signed by the complainants in June 2015), considering also that

****3.3 Violation of Article 5, Paragraph 1, Letters b), c), e) and f) of the Regulation.****

It has thus emerged that the individualized corporate accounts assigned to the complainants during the employment relationship were kept active by redirecting them to a different corporate account for a significant period of time – starting, respectively, from March 29 and May 20, 2019, at least until March 17, 2021 – resulting in the processing of the personal data contained therein by the Company, precisely due to the redirection, even before the assignment of the task to the appointed expert (which appears to have been conferred by the company on July 22, 2019: see "Technical Forensic Report", defensive memoranda June 28, 2022, Annex 27).

As for the purposes of the processing and its modalities, during the proceedings, the Company did not produce any evidence regarding the specific elements that, immediately after the resignations of the complainants, would have led to the emergence of "numerous suspicions" regarding the correctness of the actions of the complainants themselves, resulting in the decision to adopt "extraordinary measures [...] compared to [...] ordinary procedures for the processing of personal data," a circumstance that would have involved "from the very beginning" the carrying out of treatments aimed at a "specific defensive purpose for judicial purposes" (see the Company's note February 15, 2022, p. 5).

In its defensive memoranda, the Company stated that the mere fact that the complainants (in reality two of them, since the third ceased their employment about two months after these) resigned despite the long-standing employment relationship and the senior role held, would have rendered the resignations "suspicious from the outset" (see memoranda July 29, 2022, p. 2).

In reality, the resignations of the two complainants could not, in themselves, constitute evidence of "suspicious" conduct, as this is an occurrence that can ordinarily happen within a corporate group, especially since in this case the complainants themselves had informed the company of their intention to start a new entrepreneurial activity.

The assignment of the task to a specialized firm for forensic investigations, the examination of the results of the investigation, and the initiation of proceedings in court, cited in this regard by the Company, occurred after the Company adopted measures aimed at verifying, including by reviewing the stored electronic correspondence, whether the complainants had already engaged in activities in view of hypothetical conduct.

illicitly, if other employees were involved in such activities and if further useful elements were received at the email addresses to corroborate the Company's suspicions (see "Technical Forensic Report," cited, p. 9: the Company "entrusted the undersigned with an additional investigation, of a digital forensic type, in order to verify whether such individuals, before their resignations, had taken company documentation or trade secrets or databases" and defense briefs 29/7/2022, p. 6).

The Company also did not specify the specific reasons on the basis of which the processing – consisting of the apprehension of the content of the incoming messages – lasted for a significant period of time (about two years), among other things beyond the activation of proceedings before the competent judicial authority, considering also that, based on the documentation produced in the records, the date on which the accounts were closed does not emerge (see Company's note 15/2/2022, p. 3).

Therefore, the processing operations carried out by the Company on the corporate email accounts of the claimants, in the absence of any specific, explicit, and legitimate purpose pursued, were carried out in violation of the principle of data minimization (art. 5, par. 1, lett. c) of the Regulation), of purpose

limitation (art. 5, par. 1, lett. b) of the Regulation), and of storage limitation (art. 5, par. 1, lett. e) of the Regulation) (in a consistent sense, see, in relation to specific cases, previous decisions of the Authority, most recently: Provision 21 July 2022, no. 255, web doc no. 9809466; Provision 29 September 2021, no. 353, web doc no. 9719914; Provision 16 December 2021, no. 440, web doc 9739653).

More generally, moreover, the Company has set, in general terms and starting from 2015, its policy regarding the management of corporate email after the termination of the employment relationship, through what is established in the aforementioned document "OutBoarding Google APPS," IS6417, dated 15 July 2015 and "officialized" on 27 July 2015 (see Annex 10, Company's note 15.2.2022). With the aforementioned document, the Company provided that "all messages, once the collaboration has ended, will be forwarded to another corporate user upon the indication of the team leader." Furthermore, "The head of the entity communicates to the IT office to whom to forward the mail of the terminated employee and defines the time period. It is the responsibility of the IT office to ensure the redirection of the mail, its saving, and the automatic forwarding messages with the necessary indications" (point 3).

The model of "Automatic Forwarding Message" is defined as follows: "We inform you that Eng. Mario Rossi is no longer part of our organization, and therefore this email address is no longer active. For any communication, you can contact Eng. Mario Bianchi at the address [...]" (point 3). Furthermore, "the administrator of Google services will forward the mail of the terminated employee, accessing their Gmail profile and entering in the 'Settings/Account Forwarding' tab the forwarding account of the messages, adding 'keep a copy of GeicoSpa mail in Inbox.' In the 'General' tab, they will apply the above message enabling the 'automatic responder' for the time communicated by the head of the entity referred to by the former employee or former collaborator" (point 4).

Therefore, based on the procedure officialized by the Company and in use until the adoption of the new version of the document (on 21/6/2022), at the time of termination of the employment relationship, the corporate accounts of former employees and former collaborators, "upon the indication of the team leader," were "suspended/deactivated" and redirected to a different account of corporate users, with the consequent possibility for the same users to access the content of the "suspended" account.

Such persistent activity of the corporate account was provided for systematically and without any reference to specific purposes pursued by the former employer (in particular, as stated in relation to the facts subject to complaint, to pursue any purposes of protecting its rights in the event of risk situations).

Moreover, the duration of the processing carried out through redirection is not specified, as the related definition falls to the "head of the entity" (not further identified), just as the same "head" is assigned the responsibility of establishing the time for activating the automatic response message.

In this regard, it is also noted that such a message, intended for third parties who send their email communication to the account of the former employee or collaborator, in stating that "this email address is no longer active," leads to the belief that the communication received at the account of a person who is no longer part of the organization is not brought to the attention of the company (also considering that a different account is indicated for sending "any communication" to it), while instead the communication, as seen, is redirected (and therefore visible) to another employee, different from the user to whom the email account (of a personalized type) had been assigned.

This procedure is not compliant with the principles set forth regarding the protection of personal data. In particular, the systematic persistent activity of the corporate account previously assigned, even after the termination of the employment relationship, through redirection to another employee's account of the company, in the absence of any specific, explicit, and legitimate purpose pursued, is not compliant with the principle of data minimization (art. 5, par. 1, lett. c) of the Regulation) and of purpose limitation (art. 5, par. 1, lett. b) of the Regulation).

of the Regulation). Furthermore, the circumstance that the duration of the aforementioned processing is not determined based on what is deemed appropriate in relation to the pursued purposes, but rather left to the decision of the "data controller," is not compliant with the principle of data retention limitation (Article 5, paragraph 1, letter e) of the Regulation).

The provision that the user to whom the account of the former employee and collaborator is redirected is not identified based on specific functions assigned and instructions received, but rather based on the indications of the "data controller," does not allow for the guarantee of the integrity and confidentiality of the collected data (as established by Article 5, paragraph 1, letter f) of the Regulation).

Finally, it does not appear to be compliant with the principle of fairness (Article 5, paragraph 1, letter a) of the Regulation) the indication to third parties sending messages directed to the account of the former employee or collaborator, in the terms outlined above, that "the email address is no longer active," leading the aforementioned third parties to believe that the messages are not subject to processing by the Company.

It is also noted with reference to this conduct, in any case, that the Company, during the proceedings, adopted a new policy (revised on 21/6/2022) regarding the management of corporate email after the termination of the employment relationship.

4. Conclusions: declaration of unlawfulness of the processing. Corrective measures pursuant to Article 58, paragraph 2, of the Regulation.

For the above reasons, the Authority believes that the statements, documentation, and reconstructions provided by the data controller during the investigation do not allow for overcoming the observations notified by the Office with the initiation of the proceedings and are therefore unsuitable to allow for the closure of the present proceedings, as none of the cases provided for by Article 11 of the Garante Regulation No. 1/2019 apply.

The processing of personal data carried out by the Company, and in particular the processing of data through corporate email and the processing carried out based on mutual designations as data controller, is indeed unlawful, as outlined above, in relation to Articles 5, paragraph 1, letters a), b), c), e), f), and 13 of the Regulation.

The violation established in the terms of the reasoning cannot be considered "minor," taking into account the nature and severity of the violation itself, the degree of responsibility, and the manner in which the supervisory authority became aware of the violation (see recital 148 of the Regulation).

Therefore, in light of the corrective powers conferred by Article 58, paragraph 2 of the Regulation, an administrative pecuniary sanction is imposed pursuant to Article 83 of the Regulation, commensurate with the circumstances of the specific case (Article 58, paragraph 2, letter i) of the Regulation).

It is finally recalled that pursuant to Article 160-bis of the Code, "The validity, effectiveness, and usability in judicial proceedings of acts, documents, and provisions based on the processing of personal data not compliant with legal or regulatory provisions remain governed by the relevant procedural provisions."

5. Adoption of the injunction order for the application of the administrative pecuniary sanction and accessory sanctions (Articles 58, paragraph 2, letter i), and 83 of the Regulation; Article 166, paragraph 7, of the Code).

At the conclusion of the proceedings, it appears that Geico S.p.A. has violated Articles 5, paragraph 1, letters a), b), c), e), f), and 13 of the Regulation. For the violation of the aforementioned provisions, the application of the administrative pecuniary sanction provided for by Article 83, paragraph 5, letters a) and b) of the Regulation is foreseen, through the adoption of an injunction order (Article 18, Law 24.11.1981, No. 689).

It is deemed necessary to apply paragraph 3 of Article 83 of the Regulation, which provides that "If, in relation to the same processing or related treatments, a data controller [...] violates, with intent or negligence, various provisions of this regulation, the total amount of the administrative pecuniary sanction does not exceed the amount specified for the most serious violation," the total amount of the sanction is calculated so as not to exceed the maximum penalty provided for by the same Article 83, paragraph 5.

With reference to the elements listed in Article 83, paragraph 2 of the Regulation for the application of

the administrative pecuniary sanction and its quantification, considering that the sanction must "in any case [be] effective, proportionate, and dissuasive" (Article 83, paragraph 1 of the Regulation), it is represented that, in this case, the following circumstances have been considered:

a) in relation to the nature and severity of the violation, the nature of the violation concerning the general principles of processing (in particular the principles of fairness, purpose limitation, data minimization, storage limitation, and integrity and confidentiality) and the obligation of information has been deemed significant; the duration of the violation, which lasted for about two years, has also been considered (Article 83, paragraph 2, letter a) of the Regulation);

b) regarding the degree of cooperation with the supervisory authority, it has been considered that the Company has consistently cooperated with the Garante during the proceedings (Article 83, paragraph 2, letter f) of the Regulation);

c) in favor of the Company, account has also been taken of the absence of previous violations in the matter of...

****Personal Data Protection (art. 83, par. 2, lett. e) of the Regulation).****

It is also considered that the following factors are relevant in this case, taking into account the aforementioned principles of effectiveness, proportionality, and deterrence to which the Authority must adhere in determining the amount of the sanction (art. 83, par. 1, of the Regulation), primarily the economic conditions of the offender, determined based on the revenues achieved by the Company with reference to the financial statements for the year 2021.

In light of the above elements and the assessments made, it is deemed appropriate, in this case, to apply an administrative sanction against Geico S.p.A. in the amount of €40,000 (forty thousand).

In this context, it is also considered, taking into account the nature of the violations identified that pertained to the general principles of processing (in particular the principles of fairness, purpose limitation, data minimization, storage limitation, and integrity and confidentiality) and the obligation of information, that pursuant to art. 166, par. 7, of the Code and art. 16, par. 1, of the Regulation of the Authority no. 1/2019, the publication of this provision on the Authority's website should proceed.

It is also deemed that the conditions of art. 17 of Regulation no. 1/2019 are met.

****ALL OF THE ABOVE CONSIDERED, THE AUTHORITY****

notes the unlawfulness of the processing carried out by Geico S.p.A., represented by its legal representative, with registered office at Via Pelizza da Volpedo 109/111, Cinisello Balsamo (MI), VAT no. 00688580968, pursuant to art. 143 of the Code, for the violation of arts. 5, par. 1, lett. a), b), c), e), f) and 13 of the Regulation;

****ORDERS****

pursuant to art. 58, par. 2, lett. i) of the Regulation, Geico S.p.A. to pay the sum of €40,000 (forty thousand) as an administrative pecuniary sanction for the violations indicated in this provision;

****COMMANDS****

therefore the same Company to pay the aforementioned sum of €40,000 (forty thousand), according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of subsequent enforcement actions pursuant to art. 27 of Law no. 689/1981. It is reminded that the offender retains the option to settle the dispute by paying – always according to the methods indicated in the annex – an amount equal to half of the imposed sanction, within the term provided for the submission of the appeal as indicated below (art. 166, par. 8, of the Code);

****DISPOSES****

the publication of this provision on the Authority's website pursuant to art. 166, par. 7, of the Code and art. 16, par. 1, of the Regulation of the Authority no. 1/20129, and considers that the conditions of art. 17 of Regulation no. 1/2019 are met.

Pursuant to art. 78 of the Regulation, as well as arts. 152 of the Code and 10 of Legislative Decree no. 150/2011, an appeal against this provision may be filed with the ordinary judicial authority, with an application submitted to the ordinary court of the place identified in the same art. 10, within thirty days from the date of communication of this provision, or sixty days if the appellant resides abroad.

Rome, April 27, 2023

****THE PRESIDENT****

Stanzione

****THE REPORTER****

Stanzione

****THE SECRETARY GENERAL****

Mattei